

FROM “LINE APPRAISAL” TO “CASE-PROCESS RATIO”: WILL THE NEW CASE QUALITY ASSESSMENT SYSTEM FACILITATE THE CHANGING ROLE OF CHINESE PROSECUTOR?



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China's Supreme People's Procuratorate has shifted its traditional case quality assessment model of “Line Appraisal” to a new system with the “Case-Process Ratio” as the pivotal metric in 2020. This article analyses the latest case quality assessment system and the changing role of China's prosecutors based on two appraisal documents from the SPP regarding the “Case-Process Ratio” reform and two provincial performance evaluation documents. Through comparing the previous “Line Appraisal” model and the current “Case-Process Ratio” model, this article explains the paradigm shift in the evaluation of prosecutors from the “caseload” model to the “procedure control” model. We argue that this transformation enhances the efficiency of procuratorial practices and augments the defendant's perception of the procuratorate. Besides, we discovered that the current version of the case quality assessment significantly reduced the indicators relating to criminal litigation, which suggests a role redefinition for Chinese prosecutors. The article also identifies the lack of scientific and practical basis for some of the evaluation indicators.

1. Introduction

China's procuratorial performance appraisal fundamentally represents a specific application of the broader civil servant performance appraisal system, which first originated in the United Kingdom. In the year 1854, as a response to the prevailing deficiencies of a promotion system entrenched in favoritism and seniority, Sir Stafford Northcote synthesised the proficient management practices of the East India Company and crafted an influential report advocating for the constitution of a permanent and unified civil service, in which appointments and promotion would be determined by merit.¹ The report, upon its successful implementation in 1870, notably bolstered the scientific underpinning of governmental administration,

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¹ See “Report on the Organisation of the Permanent Civil Service Together with a Letter from the Rev. B. Jowett” printed by Eyre and Spottiswoode for H.M.S.O. (January 1854), available at <https://jstor.org/stable/60101185> (visited 5 February 2023).

simultaneously enhancing both the integrity and effectiveness of the government.² Recognising the exceptional benefits inherent to the appraisal system, the United States officially adopted this framework in 1883 through the enactment of the Pendleton Act. Following the cessation of the Second World War, the influence of this civil servant appraisal system permeated beyond the Anglo-Saxon boundaries, finding adoption in various regions across the globe. Since the 1990s, the incorporation of performance appraisal systems has been observed within China's prosecution system, which progressively attracted escalating attention from the highest echelons of the authority.

China's procuratorial performance appraisal refers to a procuratorial management activity that focuses on the assessment of prosecutors' handling of cases. Analogous to performance appraisal in other organisations, procuratorial performance appraisal as a management tool can both manage the day-to-day behaviour of prosecutors and guide the transformation of the prosecution service in the direction intended by policymakers.³ In the United States (US), for instance, early prosecutors focused on fighting crime and therefore prioritised crime control metrics, particularly those such as conviction rates and recidivism rates.⁴ After the 1980s, however, the operation model of US prosecutors underwent a substantial transformation. The prior "crime control" model, which largely dictated prosecutorial actions, was replaced by a more participatory approach known as the "community prosecution" model. Under this new model, prosecutors endeavour to foster an intensified collaboration with local communities, and strive to identify, in concert with community members, the crimes of greatest concern to the community for prosecution, as opposed to merely reflecting the viewpoints and priorities inherent to prosecutorial institutions.⁵ Accordingly, the evaluation metrics for US prosecutors have shifted from focusing only on conviction rates to how well prosecutors satisfy the expectations of their communities and electorate, for example focusing on the honesty of prosecutors and their effectiveness in using taxpayers' dollars.⁶

China also perceives the procuratorial performance assessment as a potent instrument to advance the reform of procuratorial system, particularly in response to shifts in the requisites of national governance.⁷ Since the reconstruction of the procuratorial organs in 1978,⁸ there has been a marked enhancement in China's

² Patrick Diamond, *Governing Britain: Power, Politics and the Prime Minister* (IBTauris, 2013) p 42.

³ Lin Xifen and Chen Cheng, "Organizational Governance and Procuratorial Attitudes: Regulating Chinese Prosecutors through the Performance Evaluation Mechanism" (2020) 62 *International Journal of Law, Crime and Justice* 1.

⁴ John J Dilulio, *Rethinking the Criminal Justice System: Toward a New Paradigm* (US Department of Justice, Office of Justice Programs, Bureau of Justice Statistics, 1992) p 2.

⁵ Nugent M Elaine, Fanflik Patricia and Bromirski Delene, *The Changing Nature of Prosecution: Community Prosecution vs. Traditional Prosecution Approaches* (Alexandria, VA: American Prosecutors Research Institute, 2004).

⁶ Joan E Jacoby, *Basic Issues in Prosecution and Public Defender Performance* (National Institute of Justice, 1982) pp 6–13.

⁷ Xu Xianming, "Explore the Establishment of a Scientific and Meticulous Performance Evaluation Mechanism for Prosecutors" *Jiancha ribao* [Prosecution Daily] (23 September 2017), available at https://www.spp.gov.cn/zdggz/201709/t20170923_201270.shtml (visited 5 February 2023).

⁸ Hiroshi Oda, "Procuracy and the Regular Courts as Enforcers of the Constitutional Rule of Law: The Experience of East Asian States" (1986) 61(6) *Tulane Law Review* 1339, 1346.

prosecutorial system, characterised by the progressive transformation of the role of prosecutors. This ongoing evolution is mirrored by the Supreme People's Procuratorate (SPP), which has promulgated a series of performance indicators for the evaluation of prosecutorial efficacy. These measures reflect a sophisticated, metric-oriented approach to gauging prosecutorial performance, emphasising the SPP's commitment to foster continuous improvement within the prosecutorial system.⁹ Regarding these official performance evaluation indicators, there have been two general views. Proponents, often emanating from managerial prosecutorial circles, vehemently advocate for the effectiveness of these benchmarks. They maintain that these indicators serve as efficient tools to facilitate the implementation of contemporary procuratorial reforms and motivate prosecutorial personnel.¹⁰ On the other hand, opponents (mostly scholars) argue that these indicators are not sufficiently crafted to encourage frontline prosecutors.¹¹

In the last three years, China's procuratorial performance appraisal system has undergone a paradigm shift, with the most noteworthy reform being the inception of the “Case-Process Ratio” model. Based on an understanding of public recognition of the legal system's work is being progressively foregrounded in China,¹² this new model deviates from the traditional result-oriented approach of the “Line Appraisal” model,¹³ which focuses mainly on departmental indicators such as conviction rate of the prosecution department and arrest rate of the arrest department. Drawing upon two universal experiences, the “Case-Process Ratio” pioneers a more holistic assessment, taking into account parties' perceptions of the prosecutorial process and underscoring the socio-political implications of prosecutorial conduct. The first experience is that the fewer criminal procedures lead to the more positive feeling of the involved parties. The second insight posits that the optimal case outcome lies in the substantive resolution of disputes. This is also an ambitious move for the SPP to gradually evolve from being a mere crime controller to a “social governor”,¹⁴ who clearly enjoys a more integrated jurisdiction and a wider reach in terms of institutional power. The SPP also hoped that this move could counter the significant challenge that it had experienced since the introduction of the National Supervision System Reform.¹⁵

⁹ Gong Chenyu, “Supreme People's Procuratorate: Improve the Case Quality Evaluation Index System that Meets the Higher Requirements of the Party and the People and Conforms to Judicial Rules” *Gaojian wang* [Higher Procuratorate Network] (14 July 2023), available at https://www.spp.gov.cn/spp/tt/202303/t20230324_609444.shtml (visited 5 February 2023).

¹⁰ Zhu Xiaoqing, “Promotion and Optimization of Prosecution Staff Appraisal” (2021) 23 *Renmin jiancha* [People's Procuratorial Semimonthly] 1–6.

¹¹ Yu Deshui, “Investigation Report on the Performance Appraisal System of Procuratorial Organs — A Sample of the Performance Appraisal System of Public Prosecution in L County People's Procuratorate of H Province” (2015) 2 *Zhongguo xingshifa zazhi* [Criminal Science] 114–132.

¹² Miao Shengming and Wang Chunfeng, *Research on Case Quality Evaluation System of Procuratorial Organs* (Beijing: Law Press China, 1st ed, 2013) p 76–78.

¹³ Lin Xifen and Zhou Chen, “Research on the ‘Case-to-Case’ Ratio Reform of the Procuratorate” (2021) 3 *Guojia jianchaguan xueyuan xuebao* [Journal of National Prosecutors College] 66–80.

¹⁴ Zhu Xiaoqing, “Consolidation and Development of the Procuratorial System after the Reform of the State Supervision System” (2018) 4 *Faxue yanjiu* [Chinese Journal of Law] 3, 7.

¹⁵ The National Supervision System Reform deprives the procuratorial authorities of the power to investigate crimes in office, which is a great shake for the procuratorial power. See Deng Jinting, “The National Supervision Commission: A new anti-corruption model in China” (2018) 52 *International Journal of Law* 62.

In this article, we provide evidence-based answers to three key research questions: (1) What is the content of the “Case-Process Ratio” model indicators? What are the differences between the “Line Appraisal” model and the “Case-Process Ratio” model? (2) What are the strengths and weaknesses of the “Case-Process Ratio” model? (3) In what ways do the new procuratorial performance appraisal system contribute to the transformation of the role of Chinese prosecutors, and where does it fall short?

To explicate these three questions, this article first briefly describes the origin and development of China’s procuratorial performance appraisal system and major recent procuratorial reforms, especially the “Four Major Procuratorial Activities” reform. The reform marked a shift away from the procuratorate’s original sole focus on criminal work to a balanced approach under which the procuratorate’s work span criminal, civil, administrative and public interest areas.¹⁶ It identifies the changing role of Chinese prosecutors from that of the crime controller (and legal supervisor) to that of the social governor. The second part introduces the collected data and the methodology. Based primarily on the two quality assessment forms of the “Case-Process Ratio” model, the third part addresses the contents and changes of the “Case-Process Ratio” reform, and discusses the strengths, problems, and other ramifications of this reform (in the fourth part). As performance appraisal reform is just one of the many recent procuratorial reforms in China, the article concludes by discussing the interaction between the “Case-Process Ratio” reform and other procuratorial reforms, such as integrating the arrest approval power and prosecution power, the introduction of the guilty-plea system, the changes in how the procuratorate makes sentencing recommendations, and the interaction between China’s courts and procuratorates.

2. Background: A Brief History of the Procuratorial Performance Appraisal System and the Changing Role of Chinese Prosecutor

China’s contemporary procuratorate was reconstructed in 1978 after its demise in the Cultural Revolution.¹⁷ Thus the main task of the procuracies in the 1980s was administrative reconstruction work, and they did not undertake much legal work in the modern sense. Crucially, China was significantly devoid of legal talents at this time. This was reflected in the composition of the procuratorate’s staff, a large number of whom were former military personnel transitioning to the judicial profession. This influx of military staff inevitably introduced a pronounced administrative character to the workings of the procuratorate.¹⁸ It could be argued that at this stage, the prosecutor is more of an executive officer than a legal supervisor under the 1982 Constitution.¹⁹ During this reconstruction phase, China’s procuratorial

¹⁶ Zhang Bencai, “Outline of Research on the Comprehensive, Coordinated and Full Development of Procuratorial Work in the New Era” (2022) 1 *Dongfang faxue* [Oriental Law] 120–131.

¹⁷ See Oda (n 8 above).

¹⁸ Zhang Jianwei, “Procuratorial Management: Judicial Laws and Institutional Effectiveness” (2023) 8 *Renmin jiancha* [People’s Procuratorial Semimonthly] 45–50.

¹⁹ “Constitution of the People’s Republic of China”, issued by the National People’s Congress (NPC) on 11 March 2018, Art 129.

performance appraisal was characterised by an intense political dimension and followed the appraisal model of administrative bodies,²⁰ which centres on the assessment of political performance and work attitude.²¹ No systemic or specialised appraisal scheme was established for prosecution-related and legal supervision work at this stage. The assessment of frontline prosecutors was mainly completed with just a few subjective evaluative words written by the chief prosecutor.²²

Around the year 2000, concurrent with China’s endorsement of the rule of law as a fundamental state strategy,²³ and the escalation in the crime rate precipitated by swift economic growth,²⁴ the motivation of prosecutors to fulfil legal obligations emerged as the paramount objective of procuratorial management. The assessment of prosecutors for this period gradually shifted from abstract political assessment to concrete work performance evaluation. For example, as stipulated in the Prosecutor Law of 1995 (the first statute of its kind), the first element of the evaluation of prosecutors is the actual performance of procuratorial work.²⁵ However, due to the strong tradition of following the appraisal model for administrative agencies, the procuratorates had not developed a set of appraisal approaches suitable for judicial institutions.²⁶

By way of illustration, the procuratorial appraisal system displayed a clear pattern of “Line Appraisal [條線考核]” in this period.²⁷ The “line” means that the whole work of the prosecution service is basically divided into nine lines or sections: political work, investigation and supervision, public prosecution, anti-corruption work, prison supervision, complaints and appeals, clerical work, policy research and prosecution technology.²⁸ The work of each section is carried out like assembly-line production, with each in parallel or even independent of the other. The “Line Appraisal” places great emphasis on collective assessment rather than on the work of individual prosecutors, which is full of administrative overtones. In conclusion, the “Line Appraisal” model can motivate prosecutors to carry out specific procuratorial work (such as reviewing arrests and prosecutions), but this

²⁰ Wan Yi and Shi Qingzheng, “An Empirical Study of Performance Appraisal of Procuratorates: An Analysis of S City Procuratorate as a Sample” (2019) 1 *Dongfang faxue* [Oriental Law] 28–43.

²¹ Nong Zhongxiao, *Lun jianchaguan jixiao kaohe jizhi* [Research on the Performance Appraisal Mechanism of Prosecutors] (Beijing: Zhongguo Jiancha Chubanshe, 2004) p 45.

²² See Yi and Qingzheng (n 20 above).

²³ Angran Gu, “A Review of the Construction of the Legal System in New China” (2004) 15 *Zhongguo renda* [People’s Congress of China] 18–22.

²⁴ Compared to 1990, China’s criminal caseload increased by almost 35 per cent in 2000. See Law Yearbook of China (1990) and Law Yearbook of China (2000).

²⁵ “Public Prosecutor Law of the People’s Republic of China”, issued by the Standing Committee of the National People’s Congress (SCNPC) on 28 February 1995, Art 24.

²⁶ It is noteworthy that, due to the constitutionally granted power of legal supervision, prosecutors in China are considered judicial officers, which is different from some Western countries. See “Decision of the CPC Central Committee on Further Strengthening the Work of People’s Courts and People’s Procuratorates”, passed by the Supreme Court on 03 May 2006, available at <http://www.reformdata.org/2006/0503/5006.shtml> (visited 5 February 2023).

²⁷ Liu Jihua and Guo Fenglu, “Rethinking and Restructuring the Evaluation Indicators of Procuratorial Bodies: An Analysis of ‘Case-to-piece Ratio’ as the Core Evaluation Indicator” (2022) 4 *Zhongguo renmin daxue xuebao* [Journal of Renmin University of China] 138–139.

²⁸ See Yi and Qingzheng (n 20 above) p 34.

type of assessment, which overly focuses on the results of departmental work,²⁹ has greatly limited the discretion of individual prosecutors.³⁰

Around 2020, major changes were introduced in the prosecutors' appraisal system. The National Supervision Reform transferred the general power to investigate duty-related crimes from the procuratorate to the supervision commissions,³¹ which is one of the most important powers of procuracy.³² Faced with weakened procuratorial powers, the SPP decided to revitalise the procuratorates through various reforms, among which the "Four Major Procuratorial Activities [四大檢察]" reform in early 2019 was the most significant.³³ The new reform divided procuratorial functions into criminal litigation, civil litigation, administrative litigation, and public interest litigation.³⁴ Instead of emphasising only criminal litigation, the reform strengthened procuratorial powers in all four major litigation areas.³⁵ To achieve the objectives of the reform as speedily as possible, the original "line organisation" has been restructured, and 10 new departments were set up with each department responsible for the entirety of one category of crime.³⁶ For instance, the First Procuratorial Department is responsible for the procuratorial work of general crimes; the Eighth Procuratorial Department is responsible for public interest litigation cases; the Ninth Procuratorial Department is responsible for juvenile delinquency.

The new organisation structure imposes greater demands on prosecutors to perform their work.³⁷ In the past, a prosecutor only had to be responsible for one part of the prosecution process in a criminal case, such as specialising in the review of arrest applications or in public prosecution. But now, a prosecutor needs to deal with all matters in a criminal case that ranges from investigation supervision to public prosecution before the bench. Higher demands mean tougher tests. For example, in the latest 2019 Prosecutor Law, the original three assessment outcomes have been increased to four, allowing a more detailed evaluation of individual prosecutors.³⁸ Immediately afterwards, on 9 January 2020, the SPP issued the

²⁹ Yao Ning, "New Thinking on the Appraisal Mechanism of Procuratorial Operations: The Mirror and Inspiration of the U.S. and Taiwan Procuratorial Appraisal" (2017) 6 *Zhongguo xingshifa zazhi* [Criminal Science] 105–119.

³⁰ Guo Song, "Organizational Rationality, Procedural Rationality, and the Criminal Justice Performance Appraisal System" (2013) 31(4) *Zhengfa luntan* [Tribune of Political Science and Law] 69, 80.

³¹ Lin Xifen and Wu Wanqiang, "Something Lost, Something Gained: Changes in China's Procuratorate in Response to the Reform of the National Supervision System" (2022) 6 *China Law and Society Review* 86.

³² *Ibid.*, p 13.

³³ Jiang Hong, "Commentary: 'Four Major Prosecutors' 'Ten Business', the Prosecution Work Ushered in a New Pattern" *Jiancha ribao* [Prosecution Daily] (15 July 2019) available at, https://www.spp.gov.cn/spp/zdggz/201907/t20190715_425060.shtml (visited 5 February 2023).

³⁴ *Ibid.*

³⁵ Ding Chunyan and Xiao Huina, "A Paper Tiger? Procuratorial Regulators in China's Civil Environmental Public Interest Litigations" (2021) 32 *Fordham Environmental Law Review* 323, 330.

³⁶ Dai Jia, "Internal Structure Reform: Fully Release the Productivity of Prosecution" *Jiancha ribao* [Prosecution Daily] (14 April 2020), available at https://www.spp.gov.cn/spp/zdggz/202004/t20200414_458613.shtml (visited 5 February 2023).

³⁷ Dong Fanchao, "What Is the Deep Meaning of the Reorganization of the Internal Structure of the Supreme Prosecutor" *Legal Daily* (10 September 2019) 3, available at https://www.spp.gov.cn/spp/zdggz/201901/t20190110_404896.shtml (visited 6 March 2024).

³⁸ "Public Procurators Law of the People's Republic of China", issued by the SCNPC on 23 April 2019, Art 43.

very detailed “the Main Case Quality Assessment Indicators of the Procuratorate”, in which the “Case-Process Ratio” was introduced as the core evaluation index.³⁹ As a novel conceptual framework, the “Case-Process Ratio” refers to a comparative analysis between the case number and the associated procedure counts for case handling.⁴⁰ A higher “process” count signifies the more litigation procedures, an elongated duration of case handling, an increased allocation of judicial resources.⁴¹ It may also denote potentially unfavorable political, societal, and legal ramifications of the case and possibly adverse experiences for the involved parties.⁴² Under such an evaluation system, the theoretically perfect “Case-Process Ratio” is “1”, signifying that a case necessitates the execution of a singular procedural step. The specific calculation formula of “Case-Process Ratio” is as follow, which will be explained in more detail later.

$$\text{Ratio} = \frac{\text{Case}}{\text{Process}} \quad (\text{Ratio} = \text{Case:Process})_{43}$$

The “Four Major Procuratorial Activities” reform, including the “Case-Process Ratio” reform, has been hailed as a significant success by the upper echelons of the Chinese Communist Party (CCP) leadership. In June 2021, an unprecedented move was made by the Central Committee of the CCP when they issued the “Opinions of the Central Committee of the Chinese Communist Party on Strengthening the Legal Supervision of Procuratorates in the New Era”.⁴⁴ This marked the first instance in the CCP’s history where a document was explicitly dedicated to the workings of the procuracy. Scholar adept in the intricacies of China’s political system will discern the significance of this gesture, as it attests to a critical recognition of the ongoing procuratorial reforms. Moreover, it intimates a prospective amplification of procuratorial powers.

This seminal document from the CCP’s Central Committee does more than merely acknowledging the work of the procuratorate as a legal supervisor. It raises the expectation that the procuratorate should be a proactive participant in social governance.⁴⁵ This expectation has effectively served as an influential reference for the subsequent transformation of prosecutors into “social governors”. In October 2021, the SPP thoroughly revised the earliest indicators of the “Case-Process

³⁹ Hu Xingjian, “The ‘Case-to-Piece Ratio’: Achieving the Organic Unity of Procedural Justice and Substantive Justice” *Jiancha ribao* [Prosecution Daily] (7 June 2020), available at https://www.spp.gov.cn/spp/llyj/202006/t20200607_464477.shtml (visited 5 February 2023).

⁴⁰ Xifen and Chen (n 13 above) pp 66, 69.

⁴¹ Zhang Jun, “Several Issues Concerning with the Procuratorial Work” (2019) 5 *Guojia Jianchaguan xueyuan xuebao* [Journal of National Prosecutors College] 11.

⁴² *Ibid.*

⁴³ Author Unknown, “Supreme People’s Procuratorate Developed Evaluation Indicators for Case Quality” *Zuigao renmin jianchayuan* [Supreme People’s Procuratorate of China] (26 April 2020), available at https://www.spp.gov.cn/xwfbh/wsfbt/202004/t20200426_459753.shtml#1 (visited 5 February 2023).

⁴⁴ Author Unknown, “Opinions of the Central Committee of the Communist Party of China on Strengthening the Legal Supervision of the Procuratorial Organs in the New Era” *Xinhua she* [Xinhua News Agency] (2 August 2021), available at http://news.cyol.com/gb/articles/2021-08/02/content_7Ld9aseEN.html (visited 5 February 2023).

⁴⁵ *Ibid.*

Ratio” and issued the updated version of the “The Main Case Quality Evaluation Indicators of the Procuratorate”.⁴⁶ The 2021 version of “Case-Process Ratio” indicators is supposed to be more scientific and reasonable, and more in line with the objective of transforming prosecutors into “social governors”.

In summation, the historical overview delineated above elucidates the intimate connection between China’s procuratorial performance assessments, the comprehensive procuratorial reforms, and the evolution of the prosecutor’s role. For example, at the early stage where the political work of prosecutors was accentuated, the performance appraisal was essentially a political evaluation. As the focus pivoted towards crime suppression, the procuratorial appraisal primarily relied on conviction rates. However, the specific assessment indicators were not always congruent with current objectives of procuratorial transformation. Therefore, a comprehensive and objective assessment of a procuratorial appraisal system necessitates a meticulous analysis of the appraisal indicators, concomitant with a thorough understanding of the current objectives of procuratorial reforms. This nexus of appraisal indicators and procuratorial objectives forms the crux of the forthcoming discourse in this article.

3. Data and Methodology

Benefiting from the second author’s personal connections with the procuracies in J and S Provinces, we have access to documents (not publicly available) of performance assessment indicators for both the “Line Appraisal” and “Case-Process Ratio” models. Our analysis is based on these documents, together with publicly available appraisal documents of the SPP and a provincial procuracy.

To better understand the rules and indicators of China’s procuratorial appraisal system, this article concentrates on two categories of appraisal documents: (1) relevant official documents issued by the Standing Committee of National People’s Congress and the SPP, inclusive of the two appraisal forms related to the “Case-Process Ratio” model (one of which is not publicly available). (2) the appraisal documents from the provincial procuracies in J province from 2017 (available online) and S province from 2022 (not publicly available). These documents bear substantial similarity to those employed in the procuracies of other provinces.

The SPP began implementing the new performance evaluation method for prosecutors on 17 May 2020.⁴⁷ This article endeavours to compare the changes within the system, as evidenced by the relevant documentation, pre and post this date. To conduct a more incisive analysis of the practical aspects of the appraisal

⁴⁶ Sun Fengjuan, “Supreme Prosecutor: the Main Evaluation Indicators of Case Quality Streamlined from 87 to 60” *Zhengyi wang* [Justice Network] (25 February 2022), available at http://news.jcrb.com/jsxw/2022/202202/t20220225_2370753.html (visited 5 February 2023).

⁴⁷ Author Unknown, “Certain Provisions on the Conduct of Performance Appraisal of Prosecutors”, *Zuigao renmin jianchayuan* [Supreme People’s Procuratorate of China] (17 May 2022), available at https://www.spp.gov.cn/spp/xwfbh/wsfbt/202005/t20200517_461135.shtml#1 (visited 5 February 2023).

system, we have referred to the implementation rules of J province prior to 17 May 2020, and that of S province after 17 May 2020.

It should be noted that our data has an inherent limitation: the provincial rules chosen may not perfectly represent all local rules across the nation. Nevertheless, we content that this limitation will not hinder our study. Although there are variances in local procuratorial rules, the core contents and indicators demonstrate relative consistency, owing to the significant guidance provided by the SPP’s unified regulations.

The appraisal documents of prosecutors in J province and S province have been selected as our empirical data for the following reason: the geographical proximity and similar socio-economic metrics between J and S provinces. J province, nestled in the Yangtze River Delta region, boasted a Gross Domestic Product (“GDP”) of approximately US\$14,700 in 2020, earning it the country’s second rank. Its per capita GDP reached US\$17,566.58, placing it third in the country. S Province, situated on China’s eastern coast, serves as an intersection between the Yellow River Economic Belt and the Bohai Economic Zone, and occupies a significant position in the national economic structure.

The empirical data for this article mainly comes from the following sources (also see Table 1): (1) The Prosecutors Law issued by the Standing Committee of the National People’s Congress in 1995 and revised in 2001, 2017 and 2019, respectively. (2) Various provisions and outlines issued by the SPP, including the Interim Provisions on the Assessment of Prosecutors (1995); the Outline of the Construction of Grassroots People’s Procuratorates (2002); the Provisions on Implementing Performance Evaluation of Prosecutors (2020), and the Guidelines on the Assessment of Prosecutor (2021). (3) The two SPP documents of “Case-Process Ratio”, i.e., the Main Case Quality Assessment Indicators of the Procuratorate in 2020 (hereinafter “the Old Assessment Indicators for Case Quality”) and its subsequent version in 2021 (hereinafter “the New Assessment Indicators for Case Quality”). (4) the two local performance evaluation rules: The 2017 Quantitative Rules for Examining the Case-handling Performance by Prosecutors of Procuratorial Organs in J Province (for Trial Implementation) (hereinafter “J Province Performance Assessment Rules”) and the 2022 System of Business Evaluation Indicators for Procuratorial Organs in S Province (hereinafter “S Province Business Evaluation Indicators”). (5) A selection of secondary data: To compensate for potential gaps in detail or precision in the local provisions of J and S Provinces, we have drawn upon supporting secondary literature on the topic.

4. Retention and Changes: From “Line Appraisal” to “Case-Process Ratio”

As illustrated in Part 2, with the issuance of the Provisions on Implementing Performance Evaluation of Prosecutors on 7 May 2020, the appraisal model for Chinese prosecutors has gradually shifted from “Line Appraisal” to the new case

Table 1: Normative documents related to “Appraisal Line” and “Case-Process Ratio”

Appraisal model	No	Documents	Enacting organs	Years
Line Appraisal	1	The Prosecutor’s Law	The Standing Committee of National People’s Congress	1995, 2001, 2017, 2019
	2	The Interim Provisions on the Assessment of Prosecutors	SPP	1995
	3	The Outline of the Construction of Grassroots People’s Procuratorates	SPP	2002
	4	J Province Performance Assessment Rules	The People’s Procuratorate in J Province	2017
Case-Process Ratio	5	Provisions on Implementing Performance Evaluation of Prosecutors	SPP	2020
	6	The Guidelines on the Assessment of Prosecutors	SPP	2021
	7	The Main Case Quality Assessment Indicators of the Procuratorate (2020 version)	SPP	2020
	8	The Main Case Quality Assessment Indicators of the Procuratorate (2021 version)	SPP	2021
	9	S Province Business Evaluation Indicators	The People’s Procuratorate in S Province	2022

quality evaluation system centred on “Case-Process Ratio” indicators. This section aims to demonstrate the changes in China’s prosecutor performance appraisal system by comparing and contrasting the “Line Appraisal” and “Case-Process Ratio” models.

(a) The Content of “Line Appraisal” Indicators

Before introducing the indicators, it is necessary to explain the departmental organisation and assessment methods of Chinese procuratorates during the “Line Appraisal” period. Throughout this period, the Chinese procuratorial appraisal system was demarcated into three types of assessment: the first was “Overall Assessment

(整體考核)”, which entailed the evaluation of subordinate procuratorates by their superior counterparts. The second category was “Vertical Assessment [垂直考核]”, involving the appraisal of lower-tier procuratorial departments by their upper-tier counterparts,⁴⁸ representing the quintessential form of “Line Assessment”. The third category pertained to the assessment of individual prosecutors, conducted by internal departments of the procuratorate.⁴⁹

Each of these appraisal categories incorporated both quantitative and marking appraisal methods. The quantitative appraisal involved setting certain numerical indicators for various procuratorial operations and quantifying the performance of prosecutors, departments and the procuratorial institution as a whole. The marking appraisal, a legacy from the early period of procuratorial reconstruction, allowed leadership to directly score the performance of subordinate prosecutors. This appraisal method tends to be more subjective and arbitrary, particularly in comparison to the quantitative appraisal method.

The following section concentrates mainly on the quantitative appraisal method. In addition, it is worth clarifying again that procuratorates are subdivided into different case handling departments, such as the public prosecution department and the investigation and supervision department, which operate independently. Therefore, the quantitative assessment indicators for different departments are not exactly the same, through the quantitative assessment results for each department will affect the overall assessment results of the procuratorate.

From a content perspective, the “Line Appraisal” model requires prosecutors to pay equal attention to the six leading indicators: quantity, quality, efficiency, effectiveness, safety and standardisation. The SPP issued the Interim Provisions on the Assessment of Prosecutors in 1995, stipulating that evaluation emphasis should be placed on the performance evaluation of individual prosecutors, yet it did not specify the precise evaluation indicators and standards. The discretion is naturally decentralised to local procuratorial organs. In 2017, the procuracy in J Province issued the J Province Performance Assessment Rules, stating that the performance evaluation of individual prosecutors focuses predominantly on the above six main indicators.⁵⁰

In practice, however, the “Line Appraisal” indicators devoted significant focus to the caseloads handled by prosecutors. Although J Province Performance Assessment Rules put forward six main indicators to evaluate procuratorial activities, a substantial part of the rules is dedicated to the annual caseloads of prosecutors with numerous detailed requirements. Firstly, the rules contain provisions for the annual caseloads for frontline prosecutors, department heads and procuratorate leaders. For instance, one rule mandated that “prosecutors should complete a certain number of cases every year”.⁵¹ This rule obliged local procuratorates

⁴⁸ See Deshui (n 11 above) p 114.

⁴⁹ *Ibid.*

⁵⁰ *J Province Performance Assessment Rules*, Arts 13–15.

⁵¹ *Ibid.*, Arts 1, 10.

to calculate the annual per capita caseload and makes specific provisions for the annual caseload of chief procurator and department heads. For example, the annual caseload of department heads, chief prosecutors and other leaders should respectively reach 50 per cent–70 per cent, 5 per cent–10 per cent and 20 per cent–40 per cent of the average caseload of frontline prosecutors in their departments.⁵² Secondly, the rule provides particular incentives to prosecutors handling large caseloads. In other words, closing more cases than the average of one's equivalent rank could play a critical role in determining performance excellence.⁵³ Thirdly, the rule takes punitive measures against prosecutors who fail to meet the minimum required caseload. For instance, if the annual caseload falls below 60 per cent of the average for one's rank, the prosecutor would be evaluated as "incompetent".⁵⁴ Even if the yearly caseload reaches 60 per cent of the average one's equivalent rank, a negative evaluation remained a possibility. Consequently, for prosecutors, the caseload become the core indicator of performance evaluation under the "Line Appraisal" model.

Besides quantity, the quality of procuratorial work also occupied an important factor under the "Line Appraisal" indicators. Given that the J Province Performance Assessment Rules do not specify the detailed indicators of case quality, we have referred to secondary literature to illustrate this matter. For example, in Yu's empirical research, the assessment indicators of the quality of "public prosecution" stand as the utmost priority in the quality assessment.⁵⁵ As a crime fighter, the practice of public prosecution represented the most critical work of procuracy. The quantitative indicators of public prosecution included case completion rate, acquittal rate, dismissal rate, reversal rate in protest cases, and adoption rate in protest cases. Of these, the acquittal rate and the dismissal rate accounted for 40 per cent of the overall weighting of all indicators. The case completion rate, the reversal rate in protest cases, and the adoption rate in protest cases accounted for 7 per cent, 10 per cent, and 10 per cent, respectively.⁵⁶ In summary, the quality indicators of public prosecution in L County, H Province, accounted for 2/3 of the whole quality evaluation score, while the quality indicators of other operations accounted for only 1/3.

Hence, it can be inferred that the quantity and quality of cases handled were the two most important evaluation indicators in the "Line Appraisal" period. Among the case quality indicators, the quality of public prosecution indisputably held central importance, with the quality of supervision being the second most important indicator. This excessive emphasis on the number of cases and the quality of prosecution and supervision reflected the efforts of the procuratorates to assume the role of crime controller and legal supervisor during this period.

⁵² *Ibid.*, Art 10.

⁵³ *Ibid.*, Art 21.

⁵⁴ *Ibid.*, Arts 1, 23.

⁵⁵ See Deshui (n 11 above) p 117.

⁵⁶ *Ibid.*

(b) *The content of “Case-Process Ratio” indicators*

This part focuses on the “Case-Process Ratio” indicators along with some related indicators. According to the SPP’s Guidelines on the Assessment of Prosecutors in 2021, the examination of procuratorial personnel can be divided into three categories: qualified prosecutors, procuratorial assistants, and procuratorial administrators. The quantitative assessment for prosecutors includes performance indicators, common indicators,⁵⁷ and comprehensive evaluation indicators,⁵⁸ in which the performance indicators account for more than 60 per cent of the overall quantitative assessment.⁵⁹ These performance indicators evaluate the political literacy of prosecutors and their work performance from the perspectives of quality, efficiency and effectiveness.⁶⁰

The most significant feature of the “Case-Process Ratio” model is its incorporation of unnecessary procedures in the computation of the relevant ratios. In this regard, the New Assessment Indicators for Case Quality 2021 stipulates five core indicators of the “Case-Process Ratio”, including indicators in criminal litigation, indicators in civil litigation, indicators in administrative litigation, indicators in public interest litigation, and indicators in complaint cases. The general formula is as follows:

$$\begin{aligned} \text{Case – Process Ratio} &= \frac{\text{Case}}{\text{Process}} = \frac{\text{number of cases}}{\text{number of processes}} \\ &= \frac{\text{number of cases}}{X \text{ unnecessary procedure flows} + \text{number of cases}} \end{aligned} \quad ^{61}$$

Firstly, as per the formula of “Case-Process Ratio”, the fewer the unnecessary procedures and the more the cases (denominator), the closer the “case-process” ratio would be to 1, which indicates superior quality and efficiency. In the Assessment Indicators for Case Quality (2021) (the New Indicators),⁶² there are 15 unnecessary procedures for criminal litigation cases, 3 for civil and administrative litigation cases, 5 for public interest litigation cases, and 1 for complaining cases. This stands in contrast to the Assessment Indicators for Case Quality (2020) (the Old Indicators),⁶³ where the core indicators only contain criminal litigation cases, civil litigation cases, and administrative litigation cases, with 16, 1, and 1 unnecessary procedures, respectively.

⁵⁷ Common indicators evaluate the political quality, moral character, ability to perform duties, mental state, integrity and self-discipline of prosecutors.

⁵⁸ Comprehensive evaluation can be combined with democratic assessment and other forms of scoring by divisional leaders, department heads, prosecutors, prosecution support staff and judicial administrative staff. Procuratorates at all levels can determine the scope of personnel, scoring criteria and scoring points for the comprehensive evaluation in conjunction with the actual work of their own offices.

⁵⁹ See “Guidelines on the Assessment of Prosecutor”, passed by the Supreme People’s Procuratorate, 6 December 2021, Art 5, available at https://www.chinapeace.gov.cn/chinapeace/c100007/2021-12/06/content_12568307.shtml (visited 5 February 2023).

⁶⁰ *Ibid.*, Art 6.

⁶¹ Fan Zhongjin, Luo Xiangyang and Wang Feng, “The ‘Case-to-piece Ratio’: A Yardstick for Measuring Judicial Quality and Efficiency” *Jiancha ribao* [Prosecution Daily] (28 April 2020), available at https://www.spp.gov.cn/spp/zdggz/202004/t20200428_459912.shtml (visited 5 February 2023).

⁶² Please refer to Table 3 for details.

⁶³ Please refer to Table 2 for details.

Table 2: Assessment Indicators for Case Quality (2020)

Indicator	Procuratorial activities applied	Indicator description (content, purpose, application, exclusions, etc.)
Case-Process Ratio	Criminal litigation	(1) The Case-Process Ratio serves as a quantitative measure for assessing both the quality and efficiency of criminal litigation cases. (2) The Case-Process Ratio within the realm of criminal litigation specifically focuses on the handling of arrest reviews and examinations and prosecutions. (3) The base value of “cases” is derived from the equation: $(a) + \{(b) - (c)\}$, where (a) represents the number of cases accepted by the procuratorial organs for approving an arrest, (b) denotes the number of cases subjected to examination and prosecution, and (c) signifies the number of cases examined for prosecution that have been reviewed for approving an arrest.* (4) The base value of “process” includes: (a) the base value of “cases”; (b) the numbers on processes in litigation that could have been avoided or reduced, but were not due to inadequate performance in previous proceedings, which simultaneously resulting in a negative perception of the parties. (5) The 16 specific types of case-handling procedure mentioned above that can bring negative feelings to parties (the unnecessary procedure flows) are: appeals for approval of arrest (non-approval of arrest), review of non-approval of arrest, review of non-approval of arrest, one extension of time for review of prosecution, two extensions of time for review of prosecution, three extensions of time for review of prosecution, one return for additional investigation (minus cases of direct prosecution where no early intervention was made), two returns for additional investigation, review of non-approval of prosecution, review of non-approval of prosecution, appeals for non-approval of prosecution, withdrawal of prosecution (minus those withdrawn due to changes in law or judicial interpretation), return by the court (minus those returned because the defendant did not appear in t case), appeal by the defendant, recommendation by the procuratorate for adjournment of trial, and state compensation.

Table 2. (Cont.)

Indicator	Procuratorial activities applied	Indicator description (content, purpose, application, exclusions, etc.)
	Civil litigation	(1) The Case-Process Ratio is used to measure the quality and efficiency of civil litigation cases. (2) The Case-Process Ratio specifically focuses on the supervision of effective civil judgments. (3) The base value of “cases” is calculated by the number of cases of civil judgment supervision that have been accepted. (4) The base value of “process” includes: (a) the base value of “cases”; (b) the number of cases received for supervisory review and correction due to disagreement with effective civil verdicts.
	Administrative litigation	(1) The Case-Process Ratio is used to measure the quality and efficiency of administrative litigation cases. (2) The Case-Process Ratio specifically focuses on the supervision of effective administrative judgments. (3) The base value of “cases” is calculated by the number of cases of administrative judgment supervision that have been accepted. (4) The base value of the “process” includes: (a) the base value of “cases”; (b) the number of cases accepted for supervisory review and correction due to dissatisfaction with effective administrative verdicts.

* For the Chinese prosecutorial authorities, the aggregate case number of approving an arrest and examination and prosecution cases provides the most transparent metric for gauging the volume of criminal cases. Nonetheless, within the context of Chinese procuratorial practices, a significant proportion of the cases that are forwarded for prosecution have already undergone an arrest review process. Consequently, when calculating the count of “cases”, any overlapping quantities should be deducted. This includes the number of cases reviewed for prosecution that have been reviewed for arrest. See Sun Fengjuan, “How to Calculate the ‘Case-to-piece Ratio’”, *Jiancha ribao* [Prosecution Daily] (8 May 2020), available at http://newspaper.jcrb.com/2020/20200508/20200508_001/20200508_001_4.htm (visited 5 February 2023).

Secondly, in criminal litigation cases, the “Case-Process Ratio” is determined by dividing the total number of cases by the sum of fifteen specified unnecessary procedures and the original number of cases. Seven out of the fifteen unnecessary procedures are related to the parties: (1) a petition by the party with the higher procuratorate against the lower procuratorate’s decision not to initiate a public prosecution; (2) a petition by the party with the higher procuratorate against the lower procuratorate’s decision of approval or disapproval of an arrest; (3) the first, (4) the second and (5) the third extension of the period of examination and prosecution; (6) the first and (7) the second supplementary investigation.

Among them, the first two types are evaluated by the direct perception of the parties, while the remaining five types are assessed in terms of procedural flow speed, which is directly linked to the procedural costs borne by the parties. These seven types of unnecessary procedures hence centre on the procedural interests of the parties. Notably, there were 16 unnecessary procedural indicators for criminal litigation cases in the Old Indicators, but the important indicator of “appeal by defendants” was deleted under the New Indicators. The S Province Business Evaluation Indicators requires that to get full marks, the “Case-Process Ratio” of all the criminal litigation cases cannot be higher than 1.33. For every 0.01 above, the total marks will be reduced by 0.1 points.⁶⁴

Thirdly, the “Case-Process Ratio” for civil and administrative litigation cases is derived by dividing the total number of cases by the sum of the three flows of unnecessary procedures and the original number of cases. Among the three unnecessary procedures, one procedure is notably associated with the parties, that is the repeated appeal to the procuratorial organs against effective civil or administrative judgments by the parties. This procedure is also the singular unnecessary procedure for complaint cases. Moreover, the “Case-Process Ratio” of complaint cases and the unnecessary procedure of parties’ repeated appeals to the procuratorial organs both represent new additions to the latest metrics. Evidently, the new indicators system expects prosecutors to resolve the grievances of parties and settle disputes to the greatest extent possible, which deviates from the traditional responsibilities of the “crime controller” and “legal supervisor”.

Fourthly, the “Case-Process Ratio” for public interest litigation cases is equal to the total number of cases divided by the aggregate of five flows of unnecessary procedures and the number of cases. The “Case-Process Ratio” of public interest litigation cases is one of the newly added core indicators under the New Indicators. Among the five types of unnecessary procedures, a new procedure has been included, specifically, the number of cases where the appellate courts do not uphold the procurator’s claims, subsequent to an appeal by involved parties.

Fifthly, the “Case-Process Ratio” for complaint cases represents a novel core indicator incorporated within the recently implemented New Indicators. This ratio is calculated by dividing the number of complaint cases by the aggregate of

⁶⁴ S Province Business Evaluation Indicators.

Table 3: Assessment Indicators for Case Quality (2021)

Indicator	Procuratorial activities applied	Indicator description (content, purpose, application, exclusions, etc.)
Case-Process Ratio	Criminal litigation	(1) The Case-Process Ratio serves as a quantitative measure for assessing both the quality and efficiency of criminal litigation cases. (2) The Case-Process Ratio within the realm of criminal litigation specifically focuses on the handling of arrest reviews and examinations and prosecutions. (3) The base value of “cases” is derived from the equation: $(a) + \{(b) - (c)\}$, where (a) represents the number of cases accepted by the procuratorial organs for approving an arrest, (b) denotes the number of cases subjected to examination and prosecution, and (c) signifies the number of cases examined for prosecution that have been reviewed for approving an arrest. (4) The base value of “process” includes: (a) the base value of “cases”; (b) the numbers on processes in litigation that could have been avoided or reduced, but were not due to inadequate performance in previous proceedings, which simultaneously resulting in a negative perception of the parties. (5) The amendment involves the removal of “appeal by the defendant” from the selection of “process”, resulting in a reduction of the original sixteen processes to fifteen.
	Civil litigation	(1) The Case-Process Ratio is used to measure the quality and efficiency of civil litigation cases. (2) The Case-Process Ratio specifically focuses on the supervision of effective civil judgments. (3) The base value of “cases” is calculated by the number of cases of civil judgment supervision that have been accepted. (4) The base value of “process” includes: (a) the base value of “cases”; (b) the number of civil appeal cases received repeatedly by both the court and the higher courts, the number of cases in which the review was suspended by the decision of “other circumstances that may suspend the review”, the number of cases that were reviewed and corrected, i.e., the number of cases where the superior court changes the decision of the lower court after the review process.

Table 3. (Cont.)

Indicator	Procuratorial activities applied	Indicator description (content, purpose, application, exclusions, etc.)
	Administrative litigation	(1) The Case-Process Ratio is used to measure the quality and efficiency of administrative litigation cases. (2) The Case-Process Ratio specifically focuses on the supervision of effective administrative judgments. (3) The base value of “cases” is calculated by the number of cases of administrative judgment supervision that have been accepted. (4) The base value of the “process” includes: (a) the base value of “cases”; (b) the number of administrative appeal cases received repeatedly by both the court and the higher courts, the number of cases in which the review was suspended by the decision of “other circumstances that may suspend the review”, the number of cases that were reviewed and corrected, i.e., the number of cases where the superior court changes the decision of the lower court after the review process.
	Public interest litigation	(1) The Case-Process Ratio is used to measure the quality and efficiency of public interest litigation cases. (2) The base value of “cases” is calculated by the number of cases of public interest litigation that have been accepted. (3) The base value of the “process” includes: (a) the base value of “cases”; (b) the number of cases withdrawn after initiation of litigation (subtracting the number of cases withdrawn due to full realisation of claims), the number of cases, after initiation of litigation, in which the court ruled inadmissible (dismissed the case), dismissed by judgement, and upheld by superior court’s final decision after appeal by the procuratorate, the number of cases in which the final court decision did not uphold the procuratorate’s claim after appeal by the parties.
	Complaint cases	(1) The Case-Process Ratio is used to measure the quality and efficiency of complaint cases. (2) The base value of “cases” is calculated by the number of complaint cases against the effective criminal verdicts that have been accepted by the procuratorates. (3) The base value of the “process” includes: (a) the base value of “cases”; (b) the number of cases of re-complaint against the outcome of cases where the first complaint has been concludes, including repeat complaint against the original (or equivalent) procuratorates and against higher procuratorates.

this same quantity and the number of duplicate appeal cases. As the legal supervisor, the procuratorate is authorised to accept complaints or appeals from parties disputing the effective verdicts, the decisions made by police or procuratorates, or those who consider the judicial organs and their personnel handle cases illegally and want to apply for supervision. Nevertheless, for an extended period, owing to a myriad of factors such as institutional resistance, the procuratorate has not accorded due gravitas to the task. The fact that the business of addressing complaints and appeals is explicitly designated for assessment in this context, especially the repeat complaint cases, serves to underscore the paramount significance the SPP ascribes to the resolution of disputes between parties.

On the whole, the “Case-Process Ratio” model possesses three main features: (1) while continuing to emphasise prosecution work in criminal litigation, the model proposes a balanced approach to the duties of prosecutors, which focuses on criminal, civil, administrative and public interest work. (2) The model introduced the procedure control approach, placing emphasis on the number of procedure flows rather than the caseloads. (3) The model factors the perception of involved parties when setting unnecessary procedure indicators. These notable alterations in measurement indicators suggest a significant transformation in the role of the prosecutor, transitioning from a mere “crime controller” or “legal supervisor” to a more comprehensive “social governor”.

(c) Retention and Changes: From “Caseload Control” to “Process Control”

The “Case-Process Ratio” appraisal model does not represent a complete overhaul of the existing “Line Appraisal” model, rather, it serves as an extension of the “Line Appraisal” model by introducing additional measures. This continuation is evidenced in their shared emphasis on the quality and quantity of cases handled. Compared with the “Line Appraisal” model, the “Case-Process Ratio” model places greater emphasis on evaluating the quality of cases, while still acknowledging the significance of the number of cases handled by prosecutors. However, the “Case-Process Ratio” model distinguishes itself from the “Line Appraisal” model by introducing objective and unified procedural indicators and emphasising the supervision of the case handling procedures.

The “Case-Process Ratio” model introduces five primary indicators that only comprehensively cover the four major activities of procuratorial organs,⁶⁵ but also objectively quantify them with the simple measurement method that focuses on the presence or absence of pre-set procedures. Moreover, the “Case-Process Ratio” system sets up a number of secondary indicators under the five primary indicators that encompasses all the detailed procedures involved in the case handling process. Meanwhile, it creates a unified formula for evaluating the quality and effectiveness

⁶⁵ Qi Biao, “Focus on the ‘Four Major Prosecutors’: To Achieve the ‘Four Major Prosecutors’, Where to Go” *Minzhu yu fazhi zhouban* [Democracy & Law Weekly] (24 February 2020), available at https://www.spp.gov.cn/spp/zd gz/202002/t20200224_455160.shtml (visited 5 February 2023).

of case handling. By employing mathematical formula and objective indicators to quantify quality and effectiveness, this approach compels prosecutors to prioritise the procedures of handling cases rather than solely focusing on case outcomes or volume. Consequently, it can be deemed as a growing trend for the procuratorates to place greater emphasis on case quality rather than quantity.

However, it is important to note that despite the “Case-Process Ratio” indicators’ emphasise on case quality, the volume of cases remains a crucial factor. The formula mathematically reveals that when the number of flows of unnecessary procedures is fixed, an increase in the number of cases corresponds to a stronger convergence of the result towards one, which is deemed as a higher quality case. Therefore, the “Case-Process Ratio” model still encourages prosecutors to handle more cases in situations where they are unable to control the number of unnecessary procedures in their cases.

In terms of changes, the most considerable improvement in the “Case-Process Ratio” model lies in its shift from the previous method of evaluating the efficiency of case handling based on caseload control to procedure control.⁶⁶ In the “Line Appraisal” model, there was no distinction made between necessary and non-necessary procedures when evaluating case handling efficiency. Instead, prosecutors’ efficiency was crudely evaluated considering of the number of cases handled within a specific timeframe. This measurement approach ignores the differences in the complexity of different cases and fails to accurately calculate the “input-output” ratio of the prosecutors in handling cases.

The evaluation concept of the “Case-Process Ratio” is built upon two principles. Firstly, the Criminal Procedure Law has set statutory time limits for all case processes, assuming their reasonableness. Therefore, whether prescribed procedures are completed within the statutory deadlines becomes a comparable indicator across cases. Secondly, by maximising the quality of the necessary procedures, it is theoretically possible to reduce non-necessary procedures such as derivative and backflow procedures, which generally results in shorter case processing times and more efficient case handling.⁶⁷ Based on such an evaluation mindset of “procedure control”, the “Case-Process Ratio” indicators align well with the objectives of quality and efficiency. It avoids the pitfalls of “caseload control” model that focuses overly on case volume at the expense of quality.

5. Discussion: Strengths and Problems of Implementing the “Case-Process Ratio”

The enhancement of the “Case-Process Ratio” model, vis-à-vis the “Line Appraisal” model, represents a notable advancement, especially the innovative replacement of the original “caseload control” method with the “procedure control” method

⁶⁶ See Xifen and Chen (n 13 above) p 70.

⁶⁷ *Ibid.*, p 71.

that strikes a proper balance between the pursuit of both the quality and quantity of cases handled. In addition, the consideration of the parties’ perceptions constitutes a central strength of the “Case-Process Ratio” model. Nevertheless, the “Case-Process Ratio” may not currently be the ideal metric. Particularly in light of the evolving role of prosecutors within the Chinese judicial system, the assessment method of “Case-Process Ratio” does offer benefits to fostering this transition, but it also bears the potential to ossify the existing role and hinder the progress of change in certain respects.

(a) Strengths of Implementing the “Case-Process Ratio”

The transition in performance assessment from the traditional “Line Appraisal” to the contemporary case quality assessment system, which centrally utilises the “Case-Process Ratio” as a core indicator, has motivated Chinese prosecutors to standardise their case-handling procedures and prioritise parties’ perception. This paradigm shift may likely catalyse a diversification in the role of Chinese prosecutors, shifting from that of crime controllers (primarily targeting the accused) and legal supervisors (focusing on the criminal investigation authorities and the courts) to the a more socially integrated role that emphasises due and streamlined process and the enhancement of social recognition.

Firstly, the “Case-Process Ratio” implements a mathematical formula to measure the number of unnecessary procedures, compelling prosecutors to restrict the arbitrary application of procedures. This not only decreases the cumulative duration required for case handle, but also permits meticulous control of the case handling procedure. The restriction influence on unnecessary procedures manifests itself primarily in three categories of procedures, including the “extension of the period of examination and prosecution” and the “return of the case for supplementary investigation”. In past practices, prosecutors have excessively relied on the “three extensions and two returns” strategy to prolong case-handling duration.

Specifically, (1) prosecutors often made use of a “fake return” to attain a “real extension”, a tactic in which a case is returned to investigation authority for supplementary investigation under the prosecutor’s pretext of unclear facts and insufficient evidence. However, the underlying intent is typically to secure more case handling time for prosecutors.⁶⁸ Articles 175.2 and 175.3 of the Criminal Procedure Law of China (2018) permit the prosecutor to return the case for supplementary investigation for one month twice for every case. Therefore, the prosecutor can get additional two months for their case by utilising this procedure; (2) prosecutors regularly extend the period of examination and prosecution outlined in Article 172.1 of the Criminal Procedure Law (2018). Theoretically, prosecutors can obtain up to 45 additional days to handle their cases via three extensions,

⁶⁸ Jiang Anjie, “Judicial Reform: ‘Case-to-Process Ratio’: Prosecution Captures the Outline”, *Fazhi ribao gong-zhonghao* [Legal Daily WeChat public account] (6 March 2021), available at <https://mp.weixin.qq.com/s/hOC2ka72j8h7F4JMIxoSBA> (visited 5 February 2023).

that is, the extension for five days for a plea leniency case, and fifteen days for other significant or complicated cases. “Three extensions and two returns” should be considered unnecessary procedures that consume extra judicial resources and increase litigation costs for both courts and parties.

The analysis of criminal cases dealt with by procuratorial organs in X city, H province from 2016 to 2019 reveals that negative factors contributing to the “Case-Process Ratio” mainly consist of the “extension of the period of examination and prosecution”, the “return of the case for supplementary investigation”, and the “appeal by defendants”. These factors collectively account for a significant 98.1 per cent of all identified unnecessary procedures (a total of sixteen), while the remaining thirteen items represent a mere 1.9 per cent.⁶⁹ The New Indicators excludes the indicator of “appeal by defendants”, thus making “three extensions and two returns” the primary sources of unnecessary procedures under the “Case-Process Ratio”, which comprised over 95 per cent of all unnecessary procedures.⁷⁰

In addressing this problem, the “Case-Process Ratio” appraisal model has demonstrated an apparent reduction in the occurrences of extensions and returns. Local data from District J of S Municipality shows that “Case-Process Ratio” in 2019, 79.37 per cent of all “unnecessary procedures” consisted of “extensions and returns”, which decreased to 55.36 per cent in 2020 after the implementation of “Case-Process Ratio” reform, and further decreased to 35.64 per cent in 2021.⁷¹ Overall, the processing duration of criminal cases in this procuracy has also experienced a substantial contraction. Compared to 2021, the average case processing cycle for public prosecution cases decreased by 7.19 per cent an annual basis in 2020, and by 12.55 per cent year-on-year in 2021.⁷² Relative to national data, “Case-Process Ratio” reform reveals a year-on-year decrease of 0.32 in the number of “unnecessary procedures” within national procuratorial organs, resulting in a reduction of 412,000 procedures in 2020.⁷³ Such a significant reduction in unnecessary procedures, in particular the “three extensions and two returns”, has never been achieved by previous appraisal methods.

Secondly, the “Case-Process Ratio” transcends the confines of internal hierarchical evaluation, that is, assessment by a superior individual or procuratorial body. It introduces evaluation by parties involved, thereby incorporating an external perspective, and urges prosecutors to prioritise the actual experience of the involved parties during cases handling.⁷⁴ This change represents the most evident

⁶⁹ See Zhongjin, Xiangyang and Feng (n 61 above).

⁷⁰ Dong Guiwen *et al.*, “Research Report on the Use of ‘Case-to-case Ratio’ Evaluation Index”, *Jiancha ribao* [Prosecution Daily] (24 September 2020), available at https://www.spp.gov.cn/spp/llyj/202009/t20200924_480761.shtml (visited 5 February 2023).

⁷¹ Lin Xifen *et al.*, “An Empirical Assessment of the Impact of ‘Case-to-case Ratio’ on the Quality and Efficiency of Prosecution Cases”, (2022) 10 *Renmin jiancha* [People’s Procuratorial Semimonthly] 53, 57.

⁷² *Ibid.*

⁷³ Han Xu, “Case-to-Process Ratio: Maximizing the Quality and Efficiency of Case Handling”, *Jiancha ribao* [Prosecution Daily], (15 March 2021), available at https://www.spp.gov.cn/spp/llyj/202103/t20210315_512651.shtml (visited 5 February 2023).

⁷⁴ See Xifen and Chen (n 13 above) p 71.

embodiment of the evolving role of Chinese prosecutors transitioning towards social governors, especially when it comes to civil, administrative and public interest litigation cases.

In the past, “Line Appraisal” was founded on both indicator quantification and leader scoring.⁷⁵ Consequently, scoring favourably in quantitative assessments was not necessarily correlated with promotions, as these were only one of many factors considered.⁷⁶ Individual assessment was primarily influenced by the evaluations of superiors.⁷⁷ Naturally, case-handling personnel might devote more attention to maintaining a good relations with their leaders and colleagues, rather than focusing on the experience of the parties involved. Furthermore, “Line Appraisal” led prosecutors to care more about the opinions of the courts and investigating authorities over the parties.

An example of this is evident in the Assessment Rules of the X City Procuratorate in 2012, which stipulated that “an acquittal will negatively impact [the prosecutor’s] year-end assessment”,⁷⁸ leading prosecutors in X City to give considerable attention to the court’s opinions and judgments. In addition, prosecutors particularly emphasised cultivating close relations with investigative authorities, because tight cooperation with the police could mitigate the risks of the point deductions in performance appraisal. For instance, in the Assessment Rules of X City Procuratorate, the most severe demerit is the failure to prosecute after arrest.⁷⁹ To circumvent this, the prosecutor must work closely with the police to make sure that the evidence collected by the police can ensure a successful prosecution. Therefore, under the “Line Appraisal” model, prosecutors are more concerned about the views of the courts and police, compared to the parties who have no such impact.

The “Case-Process Ratio” introduces the evaluation of parties’ perceptions. For example, unnecessary procedures in civil and administrative litigation cases include the repetitive appeals against the effective civil or administrative verdicts. This indicator emphasises “repetition”. Repetitive appeals indicate parties’ dissatisfaction with the initial verdicts and their request for the prosecutor’s supervision. In order to prevent repetitive appeals against valid verdicts, the prosecutors must diligently explain the law to the parties and aid them in thoroughly resolving their disputes. This goes beyond their traditional responsibilities as crime controllers and legal supervisor. Therefore, from the emphasis on party perception and the need for dispute resolution on a social level, the “Case-Process Ratio” model is facilitating the transition of China’s prosecutors into “social governors”.

⁷⁵ See “Interim Regulations for Prosecutors’ Examination”, passed by the Supreme People’s Procuratorate, 21 September 1995, Arts 10–11, available at [http://fgcx.bjcourt.gov.cn:4601/law?fn=chl065s177.txt&true-tag=1813&title=&contents=&dbt=chl#:~:text=visited 5 February 2023](http://fgcx.bjcourt.gov.cn:4601/law?fn=chl065s177.txt&true-tag=1813&title=&contents=&dbt=chl#:~:text=visited%205%20February%202023)).

⁷⁶ See Song (n 30 above) p 70.

⁷⁷ See Yi and Qingzheng (n 20 above) p 30.

⁷⁸ See Deshui (n 11 above) p 119.

⁷⁹ *Ibid.*, p 123.

In conclusion, the strengths of implementing the “Case-Process Ratio” model can be encapsulated as follows: (1) The “Case-Process Ratio” standardised case handling processes, precluding prosecutors from arbitrarily adding unnecessary procedures. (2) The “Case-Process Ratio” started to incorporate the parties’ perceptions into the evaluation system. It encourages prosecutors to take on work beyond the strict purview of case-handing, such as explaining court judgements to parties and attempting to resolve social disputes for avoiding repetitive appeals. In fact, the philosophy of “Case-Process Ratio” is a reincarnation of the “Ma Xiwu [馬錫五]” approach that has been promoted by China’s judicial system in recent years, that is, the pursuit of “for the people, benefiting the people, and relieving the people”.⁸⁰ Such a working philosophy and approach align well with the social governance role of China’s prosecutors.

(b) Problems of Implementing the “Case-Process Ratio”

However, the “Case-Process Ratio” indicators also present potential to solidify the prosecutor’s role as a crime controller, which may stifle the transformation of the prosecutor’s role to that of a social governor.

Firstly, the “Case-Process Ratio” could engender more robust control by prosecutors over criminal proceedings, which in turn may lead to a reinforcement of their role as crime controllers. This role is often more concerned with merely closing cases rather than ensuring case quality. While the “three extensions and two returns” represent improper criminal procedures, they reflect the reality that many prosecutors could not complete their cases within the statutory time limits. In lieu of resorting to the “three extensions and two returns” (which the “Case-Process Ratio” prohibits), prosecutors have developed three new strategies to extend the time limits:

- (1) The “intervention in advance” procedure: the SPP has proposed an “intervention in advance” procedure at the investigation stage by local procuratorates, which aims to guide the police in evidence collect and bolster the investigation quality.⁸¹ Early intervention can indeed improve the quality of the investigation and reduce the possibility of subsequent return for additional investigation, thus saving the prosecutor’s time. But at the same time, it may also result in a predetermined view of prosecutors on evidence collection, detention decisions, and case results. This could be particularly problematic when the conviction rate remains a key indicator in the prosecutors’ performance evaluation after the reform. Consequently, prosecutors might become more aggressive in intervening early in investigation to avoid delays, leading to higher prosecution rates and reinforcing their role as crime controllers.

⁸⁰ Zheng Zhong, “Inheriting and Developing the ‘Ma Xiwu Way of Trial’ in the New Era” *Zuigao renmin fayuan* [Supreme People’s Court of China] (16 January 2020), available at <https://www.court.gov.cn/jianshe-xiangqing-217661.html> (visited 5 February 2023).

⁸¹ Yang Yinru and Li Changsheng, “Reduce the ‘Case-to-case Ratio’: Timely Early Intervention to Strengthen the Management Assessment” *Jiancha ribao* [Prosecution Daily] (23 January 2020), available at http://newspaper.jcrb.com/2020/20200123/20200123_003/20200123_003_2.htm (visited 5 February 2023).

- (2) If faced with a choice between “extension of the period of examination and prosecution” and the “return of the case for supplementary investigation”, prosecutors are more likely to opt for the latter due to its longer time limit.⁸² But it is clear that an additional investigation would extend the defendant’s detention period. From the standpoint of case quality and social governance, opting for a “more careful review of whether to prosecute” may be preferable to a “supplementary investigation”. Therefore, the current “Case-Process Ratio” indicators may not necessarily result in lower litigation costs for defendants due to the preference for supplementary investigation.
- (3) Prosecutors may seek more time to handle cases by squeezing the courts’ time. Post-reform, the proportion of continuances suggested by prosecutors has dramatically increased.⁸³ However, courts also have their own time limit for hearing cases. If the trial time becomes overly constrained, it could risk compromising case quality, potentially increasing misjudged cases and even amplifying social disputes.

The common feature of these three strategies is that when the “Case-Process Ratio” severely limits the procedure resources and time available to prosecutors, they may be forced to requisition more time for investigations at the beginning of proceedings and during the trial, instead of concentrating on improving the case quality.

Secondly, it is difficult to evaluate the extent to which prosecutors will attach due weight to the actual feelings and perceptions of the parties involved. On one hand, although the appeal by defendants was regarded as an important unnecessary procedure in criminal litigation cases under the Old Indicators, it was removed under the New Indicators. This implies that prosecutors no longer need to earnestly contemplate the parties’ perception of the judgement, at least in relation to criminal appeals. The primary reason for this is that external evaluation is uncontrollable and the number of appeals could be extremely large. As such, the indicator of “appeal by the parties” may bring unmanageable risks to the performance appraisal of prosecutors.

On the other hand, although prosecutors do pay increased attention to parties’ access to justice in civil, administrative and public interest litigation cases, the effect is limited. This is principally because the volume of these three types of cases is relatively small. According to the SPP data, there were only about 81,000, 64,000 and 169,000 cases of civil, administrative, and public interest cases respectively handled by prosecutors in 2021,⁸⁴ which is much lower than the volume of criminal cases. If the SPP cannot include indicators of parties’ evaluation in

⁸² Xifen *et al.* (n 71 above) p 54.

⁸³ *Ibid.*

⁸⁴ Author Unknown, “The Main Data of the National Procuratorate Case Handling in 2021” *Zuigao renmin jianchayuan* [Supreme People’s Procuratorate] (8 March 2022), available at https://www.spp.gov.cn/spp/xwfbh/wsfbt/202203/t20220308_547904.shtml#1 (visited 5 February 2023).

criminal cases, the effect of improving parties' perception will inevitably remain constrained.

In a nutshell, the primary issue with the "Case-Process Ratio" model is the failure to introduce a comprehensive and scientific reform in the assessment of the quality of criminal cases. This has hindered the role transformation of the prosecutor, undermining the original intent of the reform.

6. Concluding Remarks: The Interactions between "Case-Process Ratio" and Other Reforms

This article scrutinises the performance appraisal and the evolving role of China's prosecutors. Relying on appraisal documents from the SPP and provincial procuratorates, we dissect the transformation process of China's prosecutor assessment system from "Line Appraisal" to "Case-Process Ratio", and we interrogate the inherent connections between the "Case-Process Ratio" model and the transformation of procuratorates into "social governors". Compared to the previous "Line Appraisal" model, the "Case-Process Ratio" reform is designed to better achieve the objective of prosecution service transformation. As a result, the indicators have been recalibrated with a greater emphasis on improving standardisation in case handling to boost efficiency and reduce discretionary practices. This embodies an advancement in the quality of cases, at least superficially, for the Chinese populace.

However, the "Case-Process Ratio" model harbours its own shortcomings. It lacks substantial innovation in the realm of criminal cases-handling where reform is most exigent. Therefore, "Case-Process Ratio" indicators need to be further developed on the basis of more empirical research, aiming to augment case-handling quality and assuage social discord.

Albeit China's recent procuratorial appraisal reform might only be a tiny part of the overall procuratorial reform, it signals that the Chinese procuratorial system is constantly adapting to flux of circumstances. For instance, one area mentioned in this article pertains to the investigation of duty-related crimes, traditionally under the purview of the procuratorates, but now commenced by the supervision commissions. To cope with this change, China's procuratorate has not merely sought to refine the performance evaluation system, but has also integrated the procedures of arrest approval and prosecution, introduced the guilty-plea system, and put forward sentencing recommendations.⁸⁵ In this sense, future studies will undeniably need to examine how the "Case-Process Ratio" reform interacts with these concurrent procuratorial reforms. It may find that these meticulously crafted "Case-Process Ratio" indicators, designed to control the case-handling process, could erase the efforts of other reforms that continue to expand prosecutors' authority to handle cases independently.

⁸⁵ Xifen and Wanqiang (n 31 above) p 32.

As an example, one important employed by the SPP to address the ramifications of the National Supervision Reform that reduced the procuratorial powers is to empower individual prosecutors with more authority. Previously, two prosecutors were assigned the distinct tasks of reviewing arrests and initiating prosecutions separately, but the revised approach bestows comprehensive power upon a single prosecutor, enabling them to sanction arrests and bring public prosecution. Managing the plea-guilty procedure and making procuratorial recommendations (thereby limiting the discretion of judges) are both important ways of increasing the power of prosecutors. Nevertheless, the “Case-Process Ratio” reform divides the procedures of handling cases in such a detailed manner that almost every step of the prosecutor’s work is under scrutiny. The powers of individual prosecutors are in practice firmly controlled in the hands of the leadership of local prosecutors. The diminished powers of individual prosecutors may consequently reduce their impetus to act as proactive stewards of society.

Moreover, future research on procuratorial performance appraisal needs a broader perspective that should incorporate other judicial reforms in China, especially those concerning the court system. One concluding projection posits that the Chinese prosecution system, akin to the court system, will persist in its trajectory towards centralisation under a variety of fine-grained assessment rules.⁸⁶ This article endeavours to serve as a foundational resource for future exploration in this area.

Lastly, this article offers a unique case study for comparative legal research on prosecutorial performance appraisal systems. Unlike the prosecutorial assessment systems in Europe and America, which primarily focus on individual evaluations and are more qualitative in nature, China has a more comprehensive, quantitative and metric-based assessment of prosecutorial departments as well as individual prosecutors. This article highlights the significant formative influence that performance evaluations have on prosecutorial systems and the role of prosecutors within the legal system and society in general. When facing resistance, policy-makers in other parts of the world could consider driving institutional reform through performance management as China did. However, given its immense formative power, caution must be exercised in designing the scope and enforcement mechanism of prosecutorial performance evaluation systems. While the case of China could be a valuable reference for other jurisdictions, one must be mindful of the negative impact an overly rigid and metric-based prosecutorial assessment system could have on the administration of criminal justice.

⁸⁶ Kwai Hang Ng and Peter CH Chan, “‘What Gets Measured Get Done’: Metric Fixation and China’s Experiment in Quantified Judging” (2021) 8 *Asian Journal of Law and Society* 255, 281.

